

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE CREATING SECTION 10.24.190, CRITICAL TRAFFIC CONTROL AREAS; CREATION AND ADMINISTRATION; ENHANCED PENALTIES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, AUTHORIZING THE DESIGNATION OF CRITICAL TRAFFIC CONTROL AREAS AND AUTHORIZING ENHANCED PENALTIES AS SPECIFIED."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 10.24.190, Critical Traffic Control Areas; Creation and Administration; Enhanced Penalties, of Chapter 10.24, Rules of the Road Generally, of Title 10, Vehicles and Traffic, of the City of Cheyenne, Wyoming, is hereby created to read:

10.24.190 - Critical traffic control areas; creation and administration; enhanced penalties.

- A. There is created the critical traffic control program, which shall be empowered to designate one (1) or more critical traffic control areas in the city of Cheyenne as provided in this section. The program shall be administered by the program committee in accordance with this section, which committee shall be composed of the mayor or his or her designee, the city engineer or his or her designee, and the chief of police or his or her designee. The objective of the program shall be to identify areas in the city with unsafe or unlawful traffic speeds or other behaviors and to implement appropriate temporary remedial measures to address those behaviors.
- B. No critical traffic control area shall be designated under the program except as provided in this subsection and only after the receipt of a critical traffic control program complaint. The complaint shall be signed by not less than five (5) residents of the area that is the subject of the complaint, which residents shall represent different businesses or households affected by the alleged unsafe or unlawful traffic speeds or behaviors. Complaint forms shall be made available to the public by the city engineer. Any complaint submitted under this subsection shall specifically identify the unsafe or unlawful traffic speeds or behaviors that are of concern to the residents.
- C. The program committee shall review and evaluate the merits of any traffic control program complaint submitted in accordance with subsection (B) of this section. Should the committee determine the complaint has merit, the city engineer shall order a traffic study for the affected area, the results of which shall be submitted to the committee not less than fourteen (14) days after the date that the study was initiated. If the city engineer ordered a study to evaluate vehicle speeds, the study period shall include not less than two (2) weekdays and not less than one (1) weekend Saturday as data gathering points. In addition, a crash history for not less than the previous five (5) years shall be obtained and a crash data analysis shall be developed and summarized. If the results of the study substantiate the complaint, the program committee may designate the affected area as a critical traffic

control area. Nothing in this subsection shall be construed to prohibit the city engineer from commissioning a third-party professional engineer to complete the traffic study required under this subsection.

- D. Upon the designation of any critical traffic control area as provided by subsection (C) of this section, the program committee may implement appropriate temporary remedial measures to address the unlawful traffic speeds or other behaviors including:
1. Establishing enhanced fines for speeding violations within the designated area, which fines shall be two (2) times the amount of the fine that would be imposed for the same violation in the same or similar area but for the traffic control area designation. If enhanced fines are implemented, proper signage shall also be installed to provide reasonable notice to drivers, which signage shall identify the beginning and end points of the critical traffic control area. An enhanced fine imposed under this paragraph is mandatory and may only be reduced by a municipal court judge after the court specifically finds that the defendant has no ability to pay the full fine amount and that no reasonable probability exists that the defendant will have an ability to pay the full fine amount;
 2. Installation of additional traffic control devices, including driver feedback radar signs, traffic control signals or traffic calming devices;
 3. Increased law enforcement presence for the purpose of strictly enforcing traffic laws, which increased presence may be incentivized through the authorization of overtime to be offered to police officers; and
 4. Any other appropriate temporary measures the committee determines may address the unsafe or unlawful traffic behaviors.
- E. Any critical traffic control area designated under this section shall be reevaluated by the program committee not more than fourteen (14) days after the implementation of any temporary remedial measures to determine if the measures are still appropriate under the circumstances. Should the committee determine the unsafe or unlawful traffic behaviors have been corrected, the critical traffic control area designation shall terminate and the measures implemented in accordance with this section shall be removed. Should the committee determine that the temporary remedial measures should be modified or continued, the measures shall again be reevaluated by the program committee not more than fourteen (14) days after the measures were modified or continued. Any remedial measure implemented under this section may be instituted on a permanent basis when necessary to maintain the safety of the previously designated critical traffic control area and if made permanent, shall not be subject to the reevaluation requirements imposed by this subsection.
- F. Nothing in this section shall be construed to limit or otherwise affect the authority granted under title 10, chapter 10.68 of the city code or the authority of the city traffic engineer under section 10.12.130 of the city code.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
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